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Provision of May 9, 2024
Register of provisions
No. 273 of May 9, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting today, attended by
Prof. Pasquale Stanzione, president, Prof.
Ginevra Cerrina Feroni, vice president, Dr.
Agostino Ghiglia and Attorney Guido Scorza, members, and
Secretary General Fabio Mattei;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament
and of the Council, of April 27, 2016 (hereinafter "Regulation");

HAVING REGARD TO Legislative Decree No. 196 of June 30, 2003 (Code regarding
the protection of personal data, hereinafter "Code") as amended by Legislative Decree No. 101 of
August 10, 2018, containing "Provisions for the adaptation of
national legislation to the provisions of Regulation (EU) 2016/679";

HAVING REGARD TO the complaint submitted by Engineer XX on
12/10/2020, regularized on 24/12/2020, pursuant to
Article 77 of the Regulation, alleging a violation of the rules on
the protection of personal data by Polisportiva Mimmo Ferrito s.r.l., in relation to
the lack of response to the request to exercise rights;

HAVING REGARD TO the observations made by the Secretary
General pursuant to Article 15 of the Guarantor's regulation No. 1/2000;

REPORTER: Attorney Guido Scorza;

PREMISE

1. The initiation of the investigation following the complaint against the Company.
With the complaint submitted to this Authority on
12/10/2020, regularized on 24/12/2020, Engineer XX
complained of a violation of the rules on
the protection of personal data by Polisportiva Mimmo Ferrito s.r.l. (hereinafter "the Company").
In particular, the complainant stated that, after
receiving an email from the Company informing him of the reopening of the facility with
the clear indication of other recipients, he submitted a request to exercise his rights
pursuant to Article 15 of the Regulation, requesting
access to his personal data and,
concurrently, to receive a copy of the information
prepared by the Company pursuant to Article 13 of
the same Regulation.
This request, duly notified to the Company's PEC address on
20/07/2020, did not receive any response within the timeframes indicated by the regulation.
With notes dated 05/03/2021 and 03/05/2021, this
Authority invited the Company to provide observations
regarding the facts subject to the complaint, as well as to
adhere to the request to exercise the rights made
by the complainant.
In consideration of the lack of response, a
new request for information was made, pursuant to
Article 157 of the Code, indicating the
deadline for providing a response and the

consequences related to non-compliance (note dated 24/08/2021).

Noting the lack of response to this last note as well, the Office delegated the Privacy Protection and Technological Fraud Unit of the Guardia di Finanza to proceed with the notification of a request for information, also formulated pursuant to Article 157 of the Code and the initiation of the sanctioning procedure pursuant to Article 166 of the Code, in relation to the violation of Article 157 of the Code itself (notes dated 03/11/2021).

Both acts were notified to the Company on 10/05/2022, as evidenced by the minutes of operations carried out prepared by the aforementioned Unit on May 10 and 11, 2022.

During the inspection, the Company stated that:

- the lack of response to the Authority's requests for information was not due to its own negligence, but to a typographical error in the PEC address, which is why the emails never arrived;
- "the exercise of rights submitted to the company by the complainant never reached the management; presumably the email, sent to the address info@polisportivamimmoferrito.it, ended up in spam and was never given attention, so that it could receive an appropriate response";
- "to date, the Company, following the appointment of the DPO and the signing of the contract with XX, has established a specific procedure for managing requests from the data subject, with the requirement that a response must be provided to the requester within and no later than 30 days";
- regarding the sending of an email to all subscribers clearly indicated, "the incident was accidental and caused by human error on the part of an operator working at the company (...)"

2. The initiation of the procedure for the adoption of corrective and sanctioning measures and the observations of the Company.

In light of the statements made, noting that, based on the documentation submitted by the complainant on 12/09/2022, it appeared that the request to exercise rights had been duly notified to the Company's PEC address, the Office proceeded to notify the Company of the act initiating the sanctioning procedure, pursuant to Article 166, paragraph 5, of the Code in relation to the violation of Articles 12, paragraph 3, and 15 of the Regulation (note dated 14/11/2022).

The Company, on 25/11/2022, sent its defensive writings, pursuant to Article 18 of Law No. 689/1981, in which it observed that:

- "the contested violation relates exclusively to one data subject, ..., who is still a subscriber of the writing, and it relates to a response to the request for the exercise of rights by the aforementioned interested party, which was made beyond the deadlines set by Article 12, paragraph 3, of the

Regulation, with delay”;

- “the severity does not appear to be high as it concerns common data, relating exclusively to the aforementioned, processed pursuant to Article 6, paragraph 1, letter b), for the purpose of managing the subscription contract for pool services (...);
- “the subjective element that determined the conduct is attributable to a deficit in the organization of the secretariat, due to the pandemic period, to which a serious event was added (...), the flood of 15/07/2020, which caused significant material damage to the facility.”

With reference to the measures adopted to mitigate the effects of the violation (Article 83, paragraph 2, letter c) of the Regulation), the Company stated that:

- “even before being aware of the interested party's request, the undersigned entered into a contract, on 26/11/2021, to receive support and advice regarding the implementation of a GDPR compliance system, with a qualified company (...) and appointed a data protection officer (...);
- “the consultants implemented a management system that (...) includes a specific procedure for Managing_requests_from_interested_parties issued on 03/01/2022, and specific training interventions were carried out for the secretariat staff (...).

3. The outcome of the investigation and the procedure for the adoption of corrective and sanctioning measures.

As a result of the examination of the documentation produced and the statements made by the party during the procedure, as well as the subsequent evaluations of the Office, it is noted that, unless the fact constitutes a more serious offense, anyone who, in a proceeding before the Guarantor, falsely declares or certifies news or circumstances or produces false acts or documents is liable under Article 168 of the Code, it has been established as follows.

Firstly, with reference to the violation of Article 157 of the Code (as per the act of 03/11/2021), having noted the response provided by the Company and the checks carried out, it appears that the request for information dated 24/08/2021 was not correctly notified to the recipient, due to a typographical error in the PEC address.

Therefore, regarding this violation, the related procedure is archived, pursuant to Article 11, paragraph 1, letter b) and Article 14 of the Guarantor's regulation no. 1/2019 (concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers assigned to the Guarantor for the protection of personal data, dated April 4, 2019).

On the other hand, with reference to the violation of Articles 12, paragraph 3 and 15 of the Regulation, it has emerged that the Company, in response to the request for the exercise of rights made by the complainant on 20/07/2020, did not provide any response within the legal deadlines. In fact, it does not appear that, to date, the applicant has been allowed to access the personal data held by the Company.

Preliminarily, it is necessary to recall the provision of Article 15 of the Regulation, which recognizes the interested party's right to obtain from the data controller confirmation that data concerning them is being processed and, consequently, to obtain access to such data and the information listed in letters a) - h) of the same article.

According to Article 12 of the Regulation, the data controller is required to provide the interested party access to their data and all requested information, pursuant to Articles 15 and following of the Regulation, “without unjustified delay and, in any case, no later than one month from the receipt of the request.”

Within the same timeframe, if they consider it necessary to take advantage of the possibility of extending the response by two months due to “the complexity and number of requests,” the controller must inform the interested party, indicating the reasons; “if the data controller does not comply with the request of the interested party, they must inform the interested party without delay, and no later than one month from the receipt of the request, of the reasons for non-compliance and the possibility of

lodging a complaint with a supervisory authority and of seeking judicial remedy.”

Based on the aforementioned provisions, it has been established that the Company did not provide any response to the requests of the complainant, also failing to inform them of the reasons for non-compliance. Although the Company stated in its defense documents that it was “waiting for indications of available dates to schedule a meeting” with the complainant, there is no evidence in the records that the applicant was allowed to access their personal data.

4. Conclusions: unlawfulness of the processing carried out. Corrective measures pursuant to Article 58, paragraph 2, of the Regulation.

In light of the evaluations that precede, it is noted that the statements made by the data controller in the defense writings – the truthfulness of which may be subject to accountability under Article 168 of the Code – do not allow for overcoming the observations notified by the Office with the initiation act of the procedure dated 14/11/2022 and are insufficient to allow for its archiving, as none of the cases provided for by Article 11 of the aforementioned Guarantor regulation no. 1/2019 apply.

Having taken note of all the elements acquired during the investigation, it has emerged that the conduct carried out by the Company, consisting of the failure to

****Response to the request for the exercise of rights, which is contrary to the provisions regarding the protection of personal data and therefore requires the imposition of an administrative pecuniary sanction pursuant to Article 83, paragraph 5, of the Regulation.****

5. ****Injunction Order.****

The Authority, pursuant to Article 58, paragraph 2, letter i) of the Regulation and Article 166 of the Code, has the power to impose an administrative pecuniary sanction provided for by Article 83, paragraph 5, of the Regulation, through the adoption of an injunction order (Article 18, Law No. 689 of November 24, 1981), in relation to the processing of personal data concerning the complainant, which has been found to be unlawful, as outlined above.

With reference to the elements listed in Article 83, paragraph 2, of the Regulation for the application of the administrative pecuniary sanction and its quantification, considering that the sanction must be “effective, proportionate and dissuasive in each individual case” (Article 83, paragraph 1 of the Regulation), it is represented that, in this case, the following circumstances have been taken into account:

- regarding the nature, severity, and duration of the violation, the nature of the violation concerning the provisions related to the exercise of the rights of the data subjects has been deemed significant, as well as the circumstance that the violation is still ongoing;
- the absence of previous relevant violations committed by the data controller;
- the measures adopted by the Company, useful for complying with the regulations on the protection of personal data.

In consideration of the aforementioned principles of effectiveness, proportionality, and dissuasiveness (Article 83, paragraph 1, of the Regulation) to which the Authority must adhere in determining the amount of the sanction, the economic conditions of the offender have been taken into account, determined based on the revenues achieved and referred to the financial statements for the year 2022. Based on the aforementioned elements, evaluated as a whole, it is deemed appropriate to determine the amount of the pecuniary sanction at the sum of €3,000.00 (three thousand) for the violation of Articles 12, paragraph 3, and 15 of the Regulation.

In this context, also considering the type of violation established, which concerned the rights of the data subject, it is believed that, pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Authority's Regulation No. 1/2019, the publication of this provision on the Authority's website should proceed.

Finally, it is noted that the conditions referred to in Article 17 of Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers delegated to the Authority, are met.

****ALL OF THE ABOVE HAVING BEEN STATED, THE AUTHORITY****

declares, pursuant to Articles 57, paragraph 1, letter f) and 83 of the Regulation, the unlawfulness of the processing carried out by Polisportiva Mimmo Ferrito s.r.l., represented by the legal representative pro tempore, with registered office in Palermo, Via Belgio No. 2/B, VAT No. 05710450825, in the terms stated in the motivation, for the violation of Articles 12, paragraph 3, and 15 of the Regulation;

****ORDERS****

the aforementioned Company, represented by the legal representative pro tempore, pursuant to Article 58, paragraph 2, of the Regulation, to pay the sum of €3,000.00 (three thousand) as an administrative pecuniary sanction for the violations indicated in the motivation;

****COMMANDS****

pursuant to Article 58, paragraph 2, letter c), of the Regulation to satisfy the requests of the data subject, providing the information already subject to the request dated 20/07/2020, within 30 days from the date of notification of this provision, simultaneously notifying the Authority;
to pay the sum of €3,000.00 (three thousand) according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts pursuant to Article 27 of Law No. 689/1981. It is represented that pursuant to Article 166, paragraph 8 of the Code, the offender retains the option to settle the dispute by paying – always according to the methods indicated in the annex – an amount equal to half of the imposed sanction within the term referred to in Article 10, paragraph 3, of Legislative Decree No. 150 of September 1, 2011, provided for the submission of the appeal as indicated below.

****DISPOSES****

pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Authority's Regulation No. 1/2019, the publication of this provision on the Authority's website and believes that the conditions referred to in Article 17 of Regulation No. 1/2019 are met.

Pursuant to Article 78 of the Regulation, as well as Articles 152 of the Code and 10 of Legislative Decree No. 150/2011, an appeal against this provision may be filed with the ordinary judicial authority, with a petition submitted to the ordinary court of the place identified in the same Article 10, within thirty days from the date of communication of the provision itself, or sixty days if the appellant resides abroad.

Rome, May 9, 2024

THE PRESIDENT

Stanzione

THE REPORTER

Scorza

THE SECRETARY GENERAL

Mattei